

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: June 23, 2025

ORDER OF: Mary Apostolakos Hervey, *Administrative Law Judge*.

ORDER GRANTING UNOPPOSED MOTION TO AMEND SCHEDULING ORDER

On June 20, 2025, Complainant PKDC, LLC (“PKDC”) filed an unopposed motion seeking to amend the Scheduling Order by extending the current deadlines. (Dkt. 33.) The scheduling deadlines were previously extended by 60 days in the order dated April 23, 2024, in order to allow the parties time to complete review and production of the voluminous discovery propounded in this complex proceeding. (Dkt. 27.)

In support of its request, PKDC asserts that the parties worked together in good faith and resolved the bulk of their discovery disputes after the earlier extension, but that it filed a motion to compel on May 8, 2025, to address the unresolved disputes. It also notes that Respondent CMA CGM, S.A. (“CMA”) opposed PKDC’s motion to compel by opposition filed May 15, 2025. It argues that an extension is necessary in light of the order dated June 9, 2025, in which PKDC’s motion to compel was granted in part and denied in part. (Dkt. 32.)

That order, *inter alia*, directed PKDC to supplement Interrogatory No. 26 within ten days by providing CMA with a list of all of the unsuccessful bookings it attempted to make with CMA during the contract years 2021 and 2022. PKDC asserts that this information was provided to CMA on June 16, 2025. The order also requires CMA to respond as specified to Interrogatory Nos. 20 and 26 and Request for Production No. 44. PKDC asserts that the parties are working diligently to respond to the outstanding discovery requests in accordance with the order compelling discovery, but that additional time is required in order to complete discovery and develop a full record.

PKDC states that it conferred with CMA counsel on June 18, 2025, and that CMA does not oppose entry of an order granting the relief requested.

Based on the scope and complexity of the discovery requests compelled in the order entered June 9, 2025, the undersigned finds that the parties will require additional time to complete discovery and review discovery responses in order to prepare briefs and the other filings required by the Scheduling Order. The record supports a finding that responding to the outstanding discovery requires CMA to provide substantial and detailed information regarding thousands of shipments over multiple years. In the pending motion, PKDC requests the extension of the pertinent discovery and briefing deadlines by approximately 30 days. The undersigned

finds that an extension of this length is reasonable under the circumstances despite that it will necessitate an extension of the deadline to issue an initial decision, which is currently scheduled for November 17, 2025. (Dkt. 28.)

Good cause having been stated, it is hereby ordered that the unopposed motion be **GRANTED**. Accordingly, the parties are hereby **ORDERED** to follow this amended schedule:

May 8, 2025,	Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer)
July 24, 2025	Completion of productions of documents and ESI in response to initial RFPs
August 6, 2025	Disclosure of initial expert reports, if any
August 6, 2025	Last day to serve interrogatories, requests for admission, and RFPs
August 18, 2025	Complete depositions of fact witnesses
August 18, 2025	Disclosure of rebuttal expert reports, if any
September 4, 2025	Complete expert depositions
September 4, 2025	Close of discovery
October 6, 2025	Complainant's initial brief, proposed findings of fact, and appendix
November 3, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
November 20, 2025	Complainant's reply and responses to proposed findings of fact

Mary A. Hervey -S

Digitally signed by Mary A.
Hervey -S
Date: 2025.06.23 11:41:21 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge